

3.

CASE #	CASE NAME	HEARING NAME
CVRI2502637	EIFERMAN VS JASSO	MOTION TO SET ASIDE

Tentative Ruling:

A motion to set aside a default judgment is generally governed by California Code of Civil Procedure §473(b). A motion to set aside a default judgment under CCP §473(b) must be based on either: declarations or other evidence showing “mistake, inadvertence, surprise, or excusable neglect” (in which event, relief is discretionary), or an attorney affidavit of fault (in which event, relief is mandatory).

Counsel, Amir Kordab declares the following:

“At the time the declaration pursuant to Local Rule 3116 was due, the prior handling attorney, Ricardo Chavez, responsible for handling this matter, was no longer employed with our firm. The transferring of this case resulted in an inadvertent breakdown in calendaring and an oversight of the applicable deadline. As a result of this transition, the deadline to submit the required declaration was not properly tracked, and the declaration was not timely filed. This failure was a result of mistake, inadvertence, and excusable neglect, and was not willful. Upon learning of the Court’s dismissal, I took immediate steps to investigate the status of the case and to prepare this request to that the matter may proceed on its merits.”

Under CCP §473(b), the court is required to vacate any default or dismissal “whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney’s sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect.”

Mistake, Inadvertence, Surprise or Neglect

The grounds for relief under the discretionary and mandatory provisions of CCP §473(b) are identical (“mistake, inadvertence, surprise”) except for one distinction: whereas only “excusable” neglect is a basis for relief under the discretionary provision, any neglect is a basis for relief under the mandatory provision. Thus, where an attorney affidavit of fault is filed, relief must be granted even where the default results from inexcusable neglect by the defendant’s attorney. *Standard Microsystems Corp. v. Winbond Electronics Corp.* (2009) 179 CA4th 868, 897, 102 CR3d 140, 163.

The Court finds that the 4/7/2026 dismissal was due to attorney neglect. Motion to set aside Dismissal is granted.

The Court sets the matter for a Case Management Conference on 8/27/2026 at 8:30 a.m. in Dept. 6. The Court also sets the matter for an OSC as to why sanctions of up to \$1,500 or a dismissal should not be imposed for the Plaintiff’s failure to timely file

proof of service on all defendants (CRC 3.110.(b)&(f)) on 8/27/2026 at 8:30 a.m. in Dept. 6

4.

CASE #	CASE NAME	HEARING NAME
CVRI2402618	MUTUKU VS CITY OF RIVERSIDE*	MOTION FOR RECONSIDERATION OF PRIOR ORDER – SEVERANCE OR, ALTERNATIVELY, MOTION FOR CONSOLIDATION

Tentative Ruling:

Plaintiffs' move this court to reconsider the ruling made by Judge Choi on 3/10/2026 in granting severance. The Motion for Reconsideration was filed on 5/6/2026 and served on the same day. Defendant admittedly did not serve Plaintiffs with notice of ruling on the Motion for Severance. A motion for reconsideration must be brought within 10 days of the service of the written notice of entry of the order (C.C.P. §1008(a)), while a renewal of a motion under C.C.P. §1008(b) has no explicit time limit. As no written notice of entry of the 3/10/2026 order was served, this motion is timely made.

A motion for reconsideration must be based on new or different facts, circumstances or law. (C.C.P. §1008(a).) The legislative intent was to restrict these motions to circumstances where a party offers the court some fact or circumstance not previously considered, and some valid reason for not offering it earlier. (*Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1500.) The burden is comparable to that of a party seeking a new trial on the ground of newly discovered evidence; that is, the information must be such that the moving party could not, with reasonable diligence, have discovered or produced it at trial. (*New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 212-13.)

"The 'different state of facts' language in the statute requires that the party seeking reconsideration provide both newly discovered evidence and an explanation for the failure to have produced such evidence earlier." (*Robbins v. Los Angeles Unified School Dist.* (1992) 3 Cal.App.4th 313, 317.) "The moving party's burden is the same as that of a party seeking new trial on the ground of 'newly discovered evidence, which he could not, with reasonable diligence, have discovered and produced at the trial.'" (*Baldwin v. Home Savings of America* (1997) 59 Cal.App.4th 1192, 1198.) And so the moving party must provide the trial court with a satisfactory explanation as to why he or she failed to produce the evidence at an earlier time. (*Mink v. Superior Court* (1992) 2 Cal.App.4th 1338; *Lucas v. Santa Maria Public Airport Dist.* (1995) 39 Cal.App.4th 1017, 1028.)

Plaintiffs argue that "since the Court entered its March 10, 2026, Order ("Order") on Defendant City of Riverside's Motion to Sever Plaintiffs' Complaint. ("Severance Motion"), Plaintiffs James Mutuku ("James") and Victoria Mutuku ("Victoria") (collectively "Plaintiffs") conducted six depositions of key witnesses to the harassment, discrimination, and retaliation Plaintiffs endured, including the Chief of police and other